

Piece, along which the omnibus was expected to pass, and, on seeing it approach, they caused the driver to stop, and one of them, opening the door, asked if any members of the university were there. Two of the party thereupon got out of the omnibus and gave their names and colleges. The omnibus was then conducted with the rest of the party to the Spinning House, a building situate in St. Andrew's Street, Cambridge, which has for many [532] years past been used by the university as a place for confining persons apprehended by the proctors and sentenced to imprisonment by the vice-chancellor for street-walking within his jurisdiction. Arrived at the Spinning House, the plaintiff and her companions were removed from the omnibus and taken into a room adjoining the entrance hall, in which were the two proctors, Woollaston and Blore, who asked the plaintiff her name, address, and occupation, which she gave. The plaintiff was then placed by the matron in a separate cell; and, after being detained there for about half an hour, she was taken back to the room first mentioned, where she found the defendant seated at a table with Messrs. Woollaston and Blore and two other proctors. The defendant then proceeded to examine her, and, having first asked her name, address, and occupation, asked her where she was going when stopped by the proctors. She answered that she was going to a private party at Shelford. The defendant then asked her if she was aware that the gentlemen in the omnibus were members of the university, and what sort of a party it was to have been; to which she replied that she knew that one of the gentlemen was a member, and that she considered the party was to be a respectable one. She was then asked if she was aware that breakfast had been ordered for the next morning; to which she answered in the negative, adding that she was told she would be home by 12 o'clock that night. The defendant then asked her by whom she was invited. She named one of the gentlemen who had been in the omnibus. The plaintiff then asked the defendant if he would allow her to refer for her character to certain ladies in the town for whom she worked. Her request, however, was unheeded; and the defendant sentenced her to be imprisoned in the Spinning House for fourteen days, [533] saying that he considered her case worse than that of the others, inasmuch as she had taken her younger sister (a girl about fourteen) with her.

Of the rest of the party, two were set at liberty, one was sentenced to a week's imprisonment, one to four days, and two to three days each.

The gentleman by whom the party at Shelford was given was also called as a witness, and he wholly disclaimed all intention of impropriety.

The place of confinement was described by the plaintiff and her witnesses to be cold and damp. The plaintiff's clothes were taken from her by the matron, and a prison dress substituted for them. She was not, however, detained longer than the fifth day, when, in consequence of representations made to the defendant by some persons to whom she and her mother were known, she, as well as the rest of the prisoners, was discharged.

The plaintiff further proved that there was no examination of any witnesses upon oath in her presence; nor was she aware of any warrant of commitment having been drawn up. There was in fact no regular warrant prepared at the time; but, on the trial, the counsel for the defendant stated that there was a warrant, but that it was informal, and that a more formal one had been prepared, and would be put in (a).

[534] The defence was based upon the charter granted to the university by Queen Elizabeth in the third year of her reign, and confirmed by the statute of 13 Eliz. c. 29, the 8th section of which charter was as follows:—"Et insuper volumus, et pro nobis,

(a) This warrant of commitment, which had been prepared by counsel long after the commencement of the action, was as follows:—

"To the keeper of the Spinning House or House of Correction in the town of Cambridge.

"Whereas Emma Kemp hath been apprehended by the Rev. Thomas Samuel Woollaston, one of the proctors of the said university, within the limits and jurisdiction thereof, and hath been this day brought before me and charged with being in company with divers scholars of the said university, for idle, disorderly, and immoral purposes, in a certain public street of the town and suburbs of Cambridge, and within the precincts of the said university; which charge, as well upon the information of the said proctor, as upon the examination of the said culprit, and after having heard